

Monday, December 11, 2023

Carleton Condominium Corporation No. 276
[“The Corporation”]

NOTICE OF NEW RULE(S) or AMENDMENT(S) TO RULE(S)

TO: All Owners and mortgagees of units in the Corporation shown on the Corporation’s record maintained pursuant to section 46.1 of the Condominium Act, 1998 (“the Act”)

FROM: The Corporation (the Board of Directors)

RE: Proposed Rule(s) / Amendment(s) to Rule(s)

This is a notice to all owners pursuant to Section 58 of the Condominium Act, 1998 respecting one or more proposed Rules or Amendments to Rules that have been passed by the Board of Directors. The proposed Rules are attached to this notice, along with copies of Sections 46 and 58 of the Act.

The Rule(s) / Amendments to Rules will become effective thirty days after the delivery of this notice unless the Board receives a requisition (in accordance with Section 46 of the Act), within those thirty days, requesting a meeting to consider the proposed Rules. If the Board receives a requisition within those thirty days, the Rules will become effective on the earlier of:

- (a) The time at which a quorum is not present at the first attempt to hold the meeting. (i.e., If we fail to achieve quorum at the requisitioned meeting, the rule will become effective at that time.)

and

- (b) The time at which a quorum is present at the first attempt to hold the meeting and the Owners do not vote against the rule (by ordinary vote) at the meeting. (i.e., The rule will become effective at the meeting if the Owners *don’t vote against the rule* at the meeting.)

We thank you for your attention to the Notice.

Kind Regards,

Carleton Condominium Corporation No. 276

Julie Sigouin

Julie Sigouin Condominium Manager – OLCM-L
Condominium Management Group
“As Agents Only”

Attachments

- Sections of the Act
- All amendments to existing rules are highlighted for ease of reference in red.

Sections 46 and 58 of Condominium Act, 1998

SECTION 46

Requisition for meeting

- 46 (1) A requisition for a meeting of owners may be made by those owners who at the time the board receives the requisition, own at least 15 percent of the units, and are listed in the record maintained by the corporation under subsection 47 (2) and are entitled to vote. 1998, c. 19, s. 46 (1).

Form of requisition

- (2) The requisition shall,
- (a) be in writing and be signed by the requisitionists;
 - (b) state the nature of the business to be presented at the meeting; and
 - (c) be delivered personally or by registered mail to the president or secretary of the board or deposited at the address for service of the corporation. 1998, c. 19, s. 46 (2).

Same, removal of directors

- (3) If the nature of the business to be presented at the meeting includes the removal of one or more of the directors, the requisition shall state, for each director who is proposed to be removed, the name of the director, the reasons for the removal and whether the director occupies a position on the board that under subsection 51 (6) is reserved for voting by owners of owner-occupied units. 1998, c. 19, s. 46 (3).

Duty of Board

- (4) Upon receiving a requisition mentioned in subsection (1), the board shall,
- (a) if the requisitionists so request in the requisition or consent in writing, add the business to be presented at the meeting to the agenda of items for the next annual general meeting; or
 - (b) otherwise, call and hold a meeting of owners within 35 days. 1998, c. 19, s. 46 (4).

Non-compliance

- (5) If the board does not comply with subsection (4), a requisitionist may call a meeting of owners which shall be held within 45 days of the day on which the meeting is called. 1998, c. 19, s. 46 (5).

Reimbursement of cost

- (6) Upon request, the corporation shall reimburse a requisitionist who calls a meeting under subsection (5) for the reasonable costs incurred in calling the meeting. 1998, c. 19, s. 46 (6).

SECTION 58

Rules

58 (1) The board may make, amend, or repeal rules under this section respecting the use of the units, the common elements, or the assets, if any, of the corporation to,

- (a) promote the safety, security, or welfare of the owners and of the property and the assets, if any, of the corporation; or
- (b) prevent unreasonable interference with the use and enjoyment of the units, the common elements, or the assets, if any, of the corporation. 2015, c. 28, Sched. 1, s. 54 (1).

Rules to be Reasonable

- (2) The rules shall be reasonable and consistent with this Act, the declaration, and the by-laws. 1998, c. 19, s. 58 (2).

Same, Proposed Rules

- (3) Rules proposed by the declarant before the registration of a declaration and description shall be reasonable and consistent with this Act, the proposed declaration, and the proposed by-laws. 1998, c. 19, s. 58 (3).

Inconsistent Provisions

- (4) If any provision in a rule or a proposed rule is inconsistent with the provisions of this Act, the provisions of this Act shall prevail and the rule or proposed rule, as the case may be, shall be deemed to be amended accordingly. 1998, c. 19, s. 58 (4).

Amendment by Owners

- (5) The owners may amend or repeal a rule at a meeting of owners duly called for that purpose. 1998, c. 19, s. 58 (5).

Notice of Rule

- (6) Upon making, amending, or repealing a rule, the board shall give a notice of it to the owners that including,
- (a) a copy of the rule as made, amended, or repealed, as the case may be;
 - (b) a statement of the date that the board proposes that the rule will become effective;

- (c) a statement that the owners have the right to requisition a meeting under section 46 and the rule becomes effective at the time determined by subsections (7) and (8); and
- (d) a copy of the text of section 46 and this section. 1998, c. 19, s. 58 (6); 2015, c. 28, Sched. 1, s. 54 (2).

When Rule is Effective

- (7) Subject to subsection (8), a rule is not effective until the following time:
 - 1. If the board receives a requisition for a meeting of owners under section 46 within 30 days after the board has given notice of the rule to the owners, the earlier of,
 - i. the time at which a quorum is not present at the first attempt to hold the meeting, and
 - ii. the time at which a quorum is present at the first attempt to hold the meeting and the owners do not vote against the rule at the meeting.
 - 2. If the board does not receive a requisition for a meeting of owners under section 46 within the 30 days after the board has given notice of the rule to the owners, the day after that 30th day. 2015, c. 28, Sched. 1, s. 54 (3).

Same

- (8) A rule or an amendment to a rule that has substantially the same purpose or effect as a rule that the owners have previously amended or repealed within the preceding two years is not effective until the owners approve it, with or without amendment, at a meeting duly called for that purpose. 1998, c. 19, s. 58 (8).

Same, Proposed Rule

- (9) Despite subsection (7), a rule proposed by the declarant before the registration of the declaration and description shall be effective until it is replaced or confirmed by a rule of the corporation that takes effect in accordance with subsection (7). 1998, c. 19, s. 58 (9).

Compliance

- (10) All persons bound by the rules shall comply with them and the rules may be enforced in the same manner as the by-laws. 1998, c. 19, s. 58 (10).



Monday, December 11, 2023

Dear Condo Owners and Residents,

In preparation for the upcoming winter season and to ensure the safety and efficiency of snow removal operations, we would like to communicate a vital procedure regarding visitor parking during inclement weather conditions, specifically when Environment Canada forecasts 7 cm or more of snow in the Ottawa area. This proactive measure is essential to ensure the effectiveness of snow removal efforts and to maintain safe passage for all residents and emergency vehicles during challenging weather conditions. The parking ban will also ensure access to snow dump areas used by our contractor, avoiding substantial removal and dumping costs experienced by our community last year.

To support and facilitate the necessary snow clearing operations, a Winter Weather Parking Ban will be implemented. This ban will be activated from 7 pm to 7 am under the mentioned weather conditions. During this time frame, it is crucial that all vehicles parked on the street or in designated visitor parking areas comply with this regulation.

Please be advised that vehicles found parked on the street or in visitor parking areas during the Winter Weather Parking Ban will be subject to ticketing and towing.

This proactive measure is essential to ensure the effectiveness of snow removal efforts and to maintain safe passage for all residents and emergency vehicles during challenging weather conditions.

Your cooperation in adhering to this Winter Weather Parking Ban is greatly appreciated and contributes significantly to the safety and well-being of our community.

Thank you for your understanding and cooperation.

Kind Regards,

Julie Sigouin

Condominium Manager OLCM-L
Condominium Management Group | CMG
"As agents only" for CCC 276
jsigouin@condogroup.ca